

In a meeting with Melanie's husband, Joe Moore, they learned that the amount of debt they hoped to eliminate through bankruptcy would not be as great as they initially thought. "Based on the results of your means test, you don't qualify for a Chapter 7 bankruptcy, which eliminates the greatest level of debt," Joe said as he looked at Ben and Naomi's paperwork. "It looks like you'll have to apply for Chapter 13."

"What does that mean?" Ben asked.

"Chapter 13 involves a repayment plan that can last up to five years," Joe replied. "Debts that the court includes in the plan will have to be repaid. The good news is, you don't have to repay the debts that aren't included."

Naomi considered the attorney's words. She didn't want bankruptcy but saw no other way out of her situation. Her chair felt hard to the point of being unbearable. She shifted right, then left, trying to find a more comfortable position. Thoughts of friends asking questions about her situation raced through her mind. She wondered if there was a way to keep it secret. Probably not. In a matter of months, everyone would know. She wondered how life might have been different if she and Ben had never bought the house, if they had waited another year to get married, if she hadn't gotten pregnant ... At that point, Ben said something that completely blew her away.

"Well, in our case, I think bankruptcy's an answer to prayer. I don't know what Naomi and I would do without it, especially with her losing her job and a baby on the way. I see no reason not to go ahead with the Chapter 13."

"There's still the matter of the fees," Joe said, looking over the paperwork. "You seemed to indicate in an earlier discussion that they might be a problem."

"It's a lot of money, for sure."

"I know it's tough," the attorney replied as he closed the couple's file. "The 2005 law created more liability, and more work, for law firms. Of course, this required us to increase our costs."